

Munni Lal Patel v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 August 2019 · WRIT - C No. - 26026 of 2019 · **Writ disposed of; petitioner directed to CGRF within three weeks.**

HEADNOTE

A writ challenging an order passed on an application under clause 4.6(f) of the U.P. Electricity Supply Code, 2005 was not entertained. On the licensee's objection that a Consumer Grievance Redressal Forum exists under that Code, the High Court disposed of the petition directing the consumer to approach the Forum within three weeks; any such application was to be considered strictly in accordance with law within a further six weeks.

FACTUAL SUMMARY

Munni Lal Patel invoked the Allahabad High Court's writ jurisdiction against an order dated 26 December 2018 passed on his application, said to have been made in exercise of clause 4.6(f) of the U.P. Electricity Supply Code, 2005. Counsel for the Electricity Department (respondents 2 and 3) objected that the petition was not maintainable because a Consumer Grievance Redressal Forum had been created under that Code, and the petitioner could raise the same grievance there.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6(f)

writ-maintainability-cgrf

HOLDING

A writ against an order passed on an application under clause 4.6(f) of the U.P. Electricity Supply Code, 2005 is not entertained where a Consumer Grievance Redressal Forum exists under that Code; the consumer is to approach the Forum, which shall consider the application strictly in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

A writ challenging an order passed on an application under clause 4.6(f) of the U.P. Electricity Supply Code, 2005 was not entertained.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 26 DECEMBER 2018 ORDER UNDER CLAUSE 4.6(F)

The writ was disposed of solely on the CGRF being the available forum; the High Court made no finding on the application or the impugned order. ¶ 1